



Rule of Law with Chinese Characteristics: A Contested Landscape

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Abstract

The concept of the rule of law has been a central issue in China for the past two decades, gaining even greater prominence under Xi Jinping’s leadership. This article examines the development of the rule of law in China, drawing on insights from local Chinese scholarship as a vital source for understanding the situation. By analyzing the most cited research articles in the China National Knowledge Infrastructure Database containing the keywords *fazhi* (rule of law) or *yifazhiguo* (governing the country according to law), the article explores the tension between China’s aspirations for a rule-of-law system and its simultaneous pursuit of a Socialist rule of law with Chinese characteristics. This hybrid model selectively adopts the rule of law elements while carefully avoiding aspects that might challenge the Communist Party’s leading role. The article demonstrates that despite the CCP’s de facto position above the law, opinions among Chinese scholars vary regarding the Party-state-law relationship and the direction China should take to become a rule-of-law country. However, under Xi Jinping’s leadership, China has been diverting its trajectory towards the rule of law to pursue its own path.

Keywords China · Rule of law · Socialist rule of law with Chinese characteristics · Xi Jinping

1 Introduction

The concept of the rule of law has been enshrined in the Constitution of the People’s Republic of China since the 1999 amendment. Article 5 of the Constitution reads, “The People’s Republic of China governs the country according to law and makes it a socialist country under the rule of law” (NPC 2024). On the one hand, this move

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can be understood in light of “China’s move toward law,” to paraphrase Zhang and Ginsburg (2019). On the other hand, as will be discussed later, the actual development under Xi Jinping might be turning China against the law, at least in terms of liberal legality (Peerenboom 2014).

The question of the rule of law began to be discussed by Xi Jinping’s predecessors, and already in 2009, *A Guide to Understanding Socialist Rule of Law* was published by the Central Political and Legal Affairs Commission, denoting the five key concepts of the socialist rule of law.¹ Nevertheless, the term has become widespread in numerous statements by China’s top leadership over the past decade. Xi Jinping himself has repeatedly emphasized the need to establish a rule of law system in China. These pronouncements led to concrete steps, with the Chinese Communist Party (CCP) Central Committee’s Decision on promoting the rule of law in 2014 (CC CCP 2014) and launching the Five-Year Plan on Building the Rule of Law in 2021 (CC CCP 2021). According to the Law-based Governance Committee, established at the 19th CCP Congress, the rule of law for the country, governance and society will be fully realized in China by 2035 (Zhu 2020). After the 2020 Conference on work related to overall law-based governance, Chinese media started reporting about establishing “Xi Jinping’s Thought on the Rule of Law” (Xinhua 2020). But what can this “obsession” with the rule of law tell us about China under Xi Jinping? What does China mean, or not mean, when it mentions the “rule of law”? How did Chinese academia discuss these concepts prior to these policy announcements? The following paragraphs will attempt to provide some answers.

Geographical distance is no longer a barrier to understanding China. In today’s globalized era, we can easily reach China within a couple of hours or access an infinite amount of information online in mere seconds. But does this imagined accessibility translate to a deeper understanding of China? The answer is anything but easy. While China has undoubtedly become more reachable, gaining insight into the inner workings of its leadership remains nearly impossible, and the black box of decision-making stays opaque. Western academia is sometimes criticized for approaching China and the whole of Asia from abroad with its own established epistemology, which might disregard different historical and social contexts and ways of thinking, equally valid to the “Western” concepts (Gu 2013; Vukovich 2012). Indeed, when studying sensitive issues, especially in non-democratic countries, it may be necessary to view the country from the outside. In the case of China, the opportunities for foreign researchers to conduct fieldwork have significantly diminished over the past few years (The Economist 2023; Carter 2020; Ali Nasser and Wong Foreman 2023). However, with the advancements in remote research, it is crucial to engage with local sources of knowledge.

This article examines the development and current status of the rule of law in China, highlighting the importance of local Chinese scholarship as a critical source for understanding the situation. Some scholars argue that China lacks the rule of law because it does not meet the essential criteria (Li 2022; Ye 2021) and that the

¹ These include governing the country according to law, law enforcement for the people, fairness and justice, serving the overall interests, and Party leadership (CPLC 2009).

legal framework is designed to maintain Party leadership rather than deliver justice (Clarke 2020). Others contend that such criticism arises from a comparison to liberal democratic models, suggesting that China may be developing an alternative form of the rule of law (Peerenboom 2002). Xi Jinping's vision for China diverges significantly from the "Western" model. Instead, China appears to be developing its own version of the rule of law, characterized by a state-centered, non-democratic system with the Communist Party at its core. This system includes a market-based economy with substantial public ownership and increasing government oversight. It emphasizes social stability, harmony, and subsistence over civil and political rights, prioritizing collective rights over individual ones (Peerenboom 2004, p. 113). While this may be concerning for many "China observers", it is crucial to understand the situation in one of the world's most populous and economically, politically, and militarily powerful countries. Therefore, this article explores what Chinese scholars think about the rule of law in their writings and why the current political leadership is so invested in referring to the rule of law when describing Xi Jinping's governance and reforms.

2 Sources and Their Limitation

This article reflects primarily on research outputs published by Chinese scholars in Chinese and available in the China National Knowledge Infrastructure (CNKI) Academic Journals Database. The conducted textual analysis focuses on the two hundred² most cited articles published between 1979 and 2022 that contained the keywords "rule of law" (*fazhi*) or "governance according to law" (*yifazhiguo*). The examined timespan is further divided into three distinct periods, roughly characterized as Deng's modernization up to the pre-Constitution amendment (the 1980s–1999), the pre-Xi Jinping period (2000–2012), followed by the power transition from Hu Jintao to Xi Jinping and the initiation of the new reform program (Brødsgaard and Rutten 2017, p. 154) under Xi Jinping's era (2013–2022). The purpose of this divide is to see whether and how the discussion regarding the concept of the rule of law evolved in the Chinese academic discourse, whether the policy decisions changed the discussion dynamic and whether specific topics gained prominence over others.

While the selected texts may not represent the full range of views in China, they illustrate the most prominent and influential ones. The majority of them are published in renowned Chinese law journals, such as China Legal Science, Chinese Journal of Law, CASS Journal of Law, and others. However, the primary selection criterion was the number of citations, which shows the dominance of particular ideas and their circulation among Chinese scholars. Although in a limited way and particularly cautiously, the examined texts demonstrate that despite (self-)censorship,

² Out of the two hundred texts, fifty of the most cited articles from each period were considered for the purpose of this article. The CNKI Academic Journals Database search on 30 November 2023 yielded 13,871 articles for *fazhi*, and 11,460 for *yifazhiguo*.

academic discussions include critical evaluations of China's past and present, as well as calls for reforms, including those of the Chinese Communist Party (CCP). These discussions can illuminate both the development and evaluation of legal policies and the future of the rule of law in China. They also show that despite curtailed academic freedoms in China, there is limited space to voice critical opinions.

3 China and the Rule of Law

The rule of law is a cornerstone of a well-developed society. It is a principle of governance that prioritizes political stability, peace, and universal justice. By preventing those in power from abusing their authority, it fosters trust in the government, which is crucial for economic prosperity and social progress. The UN emphasizes that effective rule of law requires laws to be publicly known, fairly enforced, and judged by an independent judiciary while aligning with international human rights standards (UN 2024). However, there is a gap between the UN's vision and reality, not only in China but in the rest of the world as well. The World Justice Project's Rule of Law Index indicates a steady global decline in the rule of law since 2016 (WJP 2023, p. 8). While China's low ranking (97th out of 142 countries) might be expected from a liberal democratic perspective, it also raises questions about whether a concept like the rule of law can be universally applied. Although the Index has its limitations and imperfections (Ibid., pp. 186–187), it is still viewed as the most detailed attempt to assess the rule of law globally (May and Winchester 2018, p. 15).

China holds a privileged position within the UN as a permanent member of the UN Security Council and thus should serve as a role model to other countries, standing up for the UN values, certainly those enshrined in the Bill of Rights. Therefore, evaluating China's performance in terms of the rule of law does not necessarily "smack of cultural imperialism" (Peerenboom 2004, p. 135) or of legal Orientalism as described by Ruskola (2013). As mentioned earlier, the concept of the rule of law has been enshrined in China's Constitution since 1999 and has been regularly endorsed by the country's top political leadership. This development could either signify the importance of the rule of law for the ruling party or reflect the "window dressing" function that constitutions, especially in authoritarian regimes, often perform to "obfuscate actual political practice" (Ginsburg and Simpsen 2013, p. 7). Moreover, we must keep in mind that the Constitution in the PRC is not litigable, and its provisions are often violated (Kellogg 2018, p. 496; Liu 2013).

The rule of law is perceived as a symbol of a highly developed society. For this reason, China readily employs the term to describe Xi Jinping's reforms. Similar to buzzwords like "democracy" or "human rights," the rule of law attracts leaders, even from authoritarian countries, who eagerly adopt and claim it for their political agendas. The following pages will illustrate that the actual meaning of the concept in a Chinese context differs significantly. Some regard it as another empty phrase without a substantial meaning (Cao 2016, p. 35) or as another tool for the CCP to

further increase its control over the country by issuing more laws and regulations or to achieve governmentality³ (He 2020, p. 3).

On the one hand, China wants to be associated with the term “rule of law”. On the other hand, it is not interested in some aspects often related to it, such as the separation of powers ensuring judicial independence, or law supremacy, especially concerning the Communist Party. This is the reason why the qualifier “with Chinese characteristics” is used so conveniently. Adding the phrase “with Chinese characteristics” to a generally accepted term, e.g. socialism, human rights, or democracy, signifies that the preceding term does not fully conform to its original meaning. Instead, it shows its subordination to Party-state objectives (Lavička and Chen 2023, p. 263). In China, the concept of the rule of law is further muddled by the ambiguity of its translation. This single term “*fazhi*” in Chinese translates to both “rule of law” and “rule by law” (Chen 2017), causing confusion and allowing the Chinese authorities room for flexible interpretation.

In China, the term “rule of law” began to shed its bourgeois label in the 1990s. Ye Ruiping argues that significant legal improvements occurred between the 1990s and 2000s following the chaotic aftermath of Mao’s era. In the 2010s, the focus shifted towards establishing legal legitimacy. Despite this, the three core principles of the rule of law—the supremacy of law, equality before the law, and judicial independence—remained enshrined but inactive within the Chinese Constitution. Given current trends, their activation appears unlikely in the foreseeable future due to the slow pace of legal reforms since Xi Jinping took office (Ye 2021, pp. 1880–1881; Kellogg 2018, p. 492).

The future of the rule of law in China has been a topic of discussion among Chinese scholars for a long time, but it has gained widespread attention since Xi Jinping’s rise to power. This surge in interest was driven by legal scholars advocating for ideological autonomy and a distinctly Chinese approach to the rule of law scholarship (Seppänen 2016, p. 49). Samuli Seppänen (Ibid., p. 27) identifies four ideological positions—conservative socialism, mainstream, liberalism, and avant-garde—to explain the various opinions and approaches within Chinese academia. Notably, he emphasizes the absence of official schools of thought, or “*xuepai*”, in China, with research instead guided by specific paradigms, or “*fanshi*”.

Figure 1. shows this significant surge in scholarship based on published research articles using the keywords “*fazhi*” and “*yifazhiguo*”, peaking in 2015 (with 1153 published articles on *fazhi* and 1584 on *yifazhiguo*). This increase correlates with the Fourth Plenary Session of the 18th Central Committee of the Communist Party of China held in October 2014, resulting in the Decision of the Central Committee of the Communist Party of China on Several Major Issues Concerning Comprehensively Promoting the Rule of Law, emphasizing the urgency of accelerating the establishment of China as a socialist rule of law country. This Decision emphasizes several fundamental principles: the leadership of the Communist Party, the paramount position of the people as both the subjects and the source of power for

³ Proposed by He (2020) as a different approach, moving beyond the focus on legality and stability maintenance.

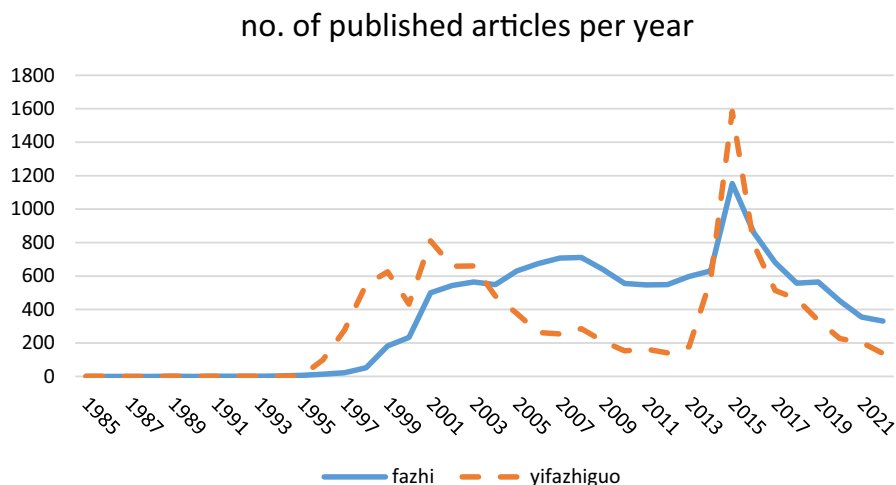


Fig. 1 Number of published articles. Source: CNKI database, figure by the author

governing the country according to law, equality before the law, and the integration of rule by law with ethical governance, all within the context of China's specific realities (CC CCP 2014).

Since its peak in 2015, the number of published articles has fallen back to pre-2000s. A possible explanation for this trend is the 2014 Central Committee meeting. This meeting marked the end of a discussion period about the concept of the rule of law, resulting in policy decisions. Once the policy was set, less opportunity remained for theoretical debate on these concepts. Consequently, many articles repeated the Party's position and elaborated on existing policy. A lack of fresh perspectives and limited space for new ideas led to a gradual decline in research publications.

This decline in academic publications, however, does not necessarily indicate that the question of the rule of law is no longer relevant. The focus may have shifted from theoretical groundwork to actual policy implementation. This shift is evident in the report following the 19th National Congress of the Communist Party of China, which emphasized the rule of law as a crucial component of achieving the Chinese Dream, with milestones set toward the centenary of the People's Republic of China in 2049 (Renminwang 2017).

4 Thick, Thin and Thinner

Finding a consensus on the definition of the rule of law is as complex as reaching an agreement on the scope of human rights. The diversity of regimes, country-specific traditions, and values makes this a highly contested endeavour. Nevertheless, identifying a generally agreeable core is a crucial starting point. It is important to emphasize that this should be seen as the beginning, not the final instalment, of the process. However, while compromise may sound positive, it often leaves all sides of

the argument uneasy about the outcome, thereby limiting their willingness to fully commit to it.

Raz (1979, p. 211), in his essay, wrote that the “rule of law is a political ideal which a legal system may lack or may possess to a greater or lesser degree” and that it is “just one of the virtues which a legal system may possess and by which it is to be judged”. Raz is particularly critical of the so-called thick version of the rule of law, which was suggested in 1959 by the International Congress of Jurists in New Delhi. He calls it a “perversion of the doctrine of the rule of law”. He explains that the rule of law should not be confused with democracy, justice, equality (before the law or otherwise), human rights of any kind or respect for persons or for the dignity of man” (Ibid., pp. 210–211). Tamanaha differentiates between the formal or procedural (thin) and substantive (thick) versions of the rule of law, each coming in three distinct forms from thinner to thicker accounts. The formal versions include the rule by law, followed by formal legality and democracy and legality. The substantive versions start with individual rights, followed by the right to dignity, justice and social welfare (Tamanaha 2004, p. 91). Møller and Skaaning propose a different scheme, with the overarching concept of the rule of law covering attributes such as (1) formal legality, meaning that laws are general, prospective, clear, certain and consistently applied; (2) checks and balances; (3) sovereignty of the people, meaning that laws are formulated through the democratic channel; (4) negative rights, such as civil and political rights; and (5) positive rights, e.g. socioeconomic rights (Møller and Skaaning 2014, p. 21; Møller 2018, pp. 21–22).

As Møller points out, formal legality can be a window dressing for otherwise ineffective and oppressive legal systems. For this reason, he proposes constitutionalism as the core of the rule of law, which includes the “checks and balances” and “negative rights.” Therefore, illiberal and authoritarian political systems might still score high on formal legality but certainly less on constitutionalism (Møller 2018, p. 31). Although Møller uses Singapore as an example of an illiberal state that has “systematically undercut ‘rule of law’ freedoms [but] has managed to be acclaimed as a ‘rule of law’ state” (Rajah 2012, p. 3), there are similarities in the case of China. Singapore and Lee Kuan Yew’s model of single-party rule with a thriving market economy has been a valuable source of inspiration for China’s development since the late 1970s. The Singapore model of authoritarian rule and good governance is still attractive for non-democratic states and corresponds with Xi’s objective to create a “moderately prosperous society” by carrying out economic reforms, strengthening the rule of law and party discipline while fighting corruption (Ortmann and Thompson 2016, p. 40), and at the same time avoiding the “modernization trap” for authoritarian regimes unwilling to democratize” (Ortmann and Thompson 2014, p. 434). However, as Kellogg (2018, p. 508) observes, China under Xi Jinping is diverging from the Singaporean model of authoritarian legality, increasingly favouring political repression over legal instruments for maintaining control.

We cannot quickly draw a straight line from the thinnest to the thickest concept of the rule of law and move towards the thicker version simply by adding one element to the other (Bedner 2018, p. 36). Moreover, while the rule of law is often viewed as the antithesis of the rule by law, Bedner sees it as the first element of the rule of law definition (Ibid., p. 37). However, this single element is insufficient to constitute the

rule of law. As Smith (2019, p. 48) points out, “Every rule-of-law state must rule by law, but not every rule-by-law state has the rule of law”. According to Bedner (2018, p. 47), the thick version of the rule of law incorporates procedural elements, the institutional element of an independent judiciary and the substantive elements such as justice, individual rights and liberties. In this context, while China has considerably improved its procedural elements and progressed towards establishing formal legality⁴ in recent decades, the lack of an independent judiciary and limited individual rights and liberties disqualify it from being considered a proper rule-of-law country.

While described in widely divergent ways, the rule of law enjoys broad agreement on its core principles and the most fundamental requirements these entail. These principles include generality and prospectivity, clarity and openness, stability and consistency, and enforceability (Rijkema 2013, p. 23). Gorobets (2020, p. 231) views the thin-thick divide as a product of domestic legal experience and practice, resulting from “contemplating the rule of law as a political and legal doctrine of protecting citizens against governmental abuses”. According to him, thin theories establish safeguards for how laws should adequately function, and thick theories ensure that laws substantively reflect the values and principles underlying individual rights. For this reason, China and other authoritarian countries prefer to use the thinner version of the rule of law as it still allows them to claim the “rule of law” as their characteristic while retaining their undemocratic regimes (Bedner 2018, pp. 40–41).

5 Evolving Discourses

This section highlights some of the prominent themes emerging from the reviewed texts published across different periods. While not exhaustive, these themes capture the key challenges of building the rule of law in China and the unique path the country is navigating. Several themes resonate with the (sub)chapter titles in Randall Peerenboom’s book, *China’s Long March Toward Rule of Law* (2002). These include overcoming the legal chaos of the Mao era, establishing an independent and professional judiciary, and streamlining a cumbersome bureaucracy while fostering economic growth.

These themes often reflect interconnected concepts that illustrate China’s evolving political landscape over the past three decades. Throughout all the examined periods, there are calls for legal reforms, modernization, enhancement of legal literacy among both the judiciary and ordinary citizens, and the redefinition of the Party-state relationship. Other prominent themes include discussions about foreign influences versus local specifics, often referred to as “Chinese characteristics,” which, among other issues, add virtue and morals as a unique part of the Chinese version of the rule of law. Additionally, the need to address ingrained practices and adapt to a weakening ideology, alongside China’s dynamic socioeconomic landscape, growing global influence, and self-confidence, presents significant challenges. While

⁴ See Møller (2018), pp. 21–22.

approaching the situation from diverse perspectives, the authors generally agree that China's current state is far from ideal, and reforms are necessary in the legal and political spheres to establish a genuine rule of law.

5.1 Optimism and Reforms: Paving the Way to Rule of Law in China? (1980s–1999)

Prior to 1999, scholarship on the rule of law in China encompassed a diverse range of topics. While the specific themes varied, several key areas emerged as central to the authors' understanding of the development of the rule of law. Due to the multifaceted nature of many articles, quantifying these themes is challenging. In the 1980s and 1990s, authors adopted a critical perspective on China's judicial and administrative systems, advocating for reforms to both the legal framework and the Communist Party itself. They viewed a robust legal framework as essential for establishing the rule of law in China, emphasizing the supremacy of law, even over the Party's authority. This period was marked by a more optimistic outlook on China's development, with a belief that the rule of law could eventually be achieved.

The most prominent theme was the need to curtail administrative power, evident in approximately half of the examined texts. Reforms, legal research and education, and the professionalization of the system were crucial to building public trust in the legal system and dismantling the "rule of man" practices prevalent before Deng Xiaoping's reforms in the late 1970s. Notably, around a fifth of the articles acknowledged the Communist Party's pivotal role in advancing the rule of law in China. Discussions on the supremacy of law and judicial independence, though less prevalent, were still significant. Other themes reflected the need for a unique approach based on Chinese conditions.

Calls for reform are echoed in the 1996 article "On Governing the Country According to Law" by Wang et al. (1996). The authors emphasize critical points for establishing a fair judicial system. Firstly, judicial and prosecutorial powers must be exercised independently by relevant organs in accordance with the law, free from interference from administrative agencies, social groups, or individuals (Wang et al. 1996, p. 6). Secondly, they argue that the law applies equally to all citizens, regardless of their current position or past achievements (Ibid., p. 8). Finally, they advocate for the Party to operate within the Constitution's and the law's framework. While the Party leads the people in formulating these legal structures, it must also lead by example in abiding by them (Ibid., p. 9).

Ying (1997, p. 35), in his article, mentions the remarks of Jiang Zemin on the importance of administering according to the law as a fundamental principle for modern rule-of-law states, indicating that understanding and practice of this principle vary internationally but share common emphases on legal compliance, protection of citizens' rights, and limitation of government power. Furthermore, his paper outlines that administrative actions must be authorized by law, with administrative authority derived from the people and confined within legal boundaries. The core of administering according to the law is the legality of powers, with any action beyond granted powers being invalid (Ibid., p. 36). According to Sun (1999, p. 11),

promoting the rule of law involves primarily advocating for formal justice, and in some cases, substantive justice can be sacrificed to achieve this goal. However, Yan argues that in a rule-of-law society, substantive justice represents the inherent justice of the legal system, requiring equal respect and protection of everyone's freedom and a reasonable distribution of rights and obligations. Therefore, a rule-of-law society must pursue both formal and substantive justice, as they complement each other (Yan 1999, p. 13).

A few authors advocated for incorporating Western legal concepts or at least considering their impact on China's transformation (Jiang 1997; Yin 1998; Gong 1998). Yao views the Chinese legal system as a product of Western culture. Therefore, it lacks local traditional cultural roots, resulting in a disconnect and contradiction between material systems and spiritual cultural factors. The public generally holds a repulsive attitude towards the law, seeing it as foreign and external, which leads to a loss of sanctity and effectiveness of the law (Yao 1997, p. 11). Ma (1999, p. 55) warns against relying on indigenous resources for the construction of modern rule of law as they can be exploited and used against social evolution and reforms.

5.2 Modernization with Chinese Characteristics: Charting an Independent Path? (1999–2012)

The incorporation of the rule of law into the Constitution signified that the government was serious about presenting China as a rule-of-law country. While the actual role of the Constitution in China is a topic for another debate, incorporating this new concept sends a strong message both domestically and internationally. Scholarly discussions during this period revolved around similar themes, such as modernization and reforms of judicial and administrative systems, which were discussed in about half of the texts. The prominence of the Party as the driving force for development also increased.

While the majority of authors view the strengthening of the rule of law positively, some argue for a more cautious approach. Lu and Yao (2004) explore the potential negative impact of the rule of law on financial development. They argue that reforming the banking system and liberalizing interest rates are more critical for China's financial well-being than prioritizing improvements in the rule of law. This argument reflects the prevailing "economy and development first" view, which dominated discourse until the economic slowdown following the 2008 financial crisis.

Chen (2002), however, acknowledges the need for reform while raising concerns. He warns that strengthening public security organs and police power and limiting citizen freedoms could hinder China's progress towards the rule of law (Chen 2002, p. 81). Chen (2003, p. 69) identifies a critical obstacle to achieving the rule of law in China: the underdeveloped state of legal reasoning methodologies. He, however, acknowledges positive developments in the 1990s, particularly advancements in legal system construction. Chen argues that these evolving approaches to legal thought are essential as they pave the way for more in-depth legal research and foster a more robust public understanding of the law. Ultimately, he asserts that this

transformation in legal consciousness will reshape societal perceptions of the law and catalyze the transition towards the rule of law.

China's "lawless" period during the Mao era has resulted in a limited public understanding of the law and a deep distrust of the legal system. Therefore, reforms and public awareness campaigns were deemed necessary to mitigate this weakness. As in the previous period, calls for improving legal literacy and thinking among ordinary citizens and legal professionals resonated in one-fourth of the articles. Zheng and Zhang (2005, p. 9) argue that two key factors hindered public trust in the judiciary: the low quality of judicial personnel with limited qualifications and competence and the outdated judicial system that failed to adapt to societal advancements. Zhou (2006) presents a contrasting view on strengthening public trust. He cautions against bolstering China's petition system, believing it could lead to a system reliant on arbitrary "rule of man" rather than the desired rule of law. Zhou (2006, p. 47) advocates prioritizing the court system's development as a way to build trust.

Another area requiring improvement is the administrative accountability system. Ding and Xia (2006, p. 17) argue for its integration within the rule of law framework. They emphasize the importance of due process to ensure the system's legitimacy, fairness, and equal application of responsibilities. China's limited judicial review process presents another obstacle to the rule of law. Zhou (2007, p. 123) proposes strengthening legislative control over administrative discretion to address its widespread abuse. He highlights the public perception that the legislature has failed to adequately regulate administrative power, leading to the current situation. While acknowledging China's unique circumstances, Zhou emphasizes the value of learning from developed nations with established rule-of-law systems. Wang and Chen (2003, p. 74) take this argument a step further. While discussing the necessity of establishing the right to know in Chinese legislation, they stress that China must uphold its provisions as a signatory to the International Covenant on Human Rights. Establishing the rule of law in China, however, hinges on the actual enforceability of new laws. Yu (2008, p. 93) argues that a robust judicial and law enforcement system is the cornerstone of building and reconstructing a nation based on the rule of law. This system, characterized by strong legal frameworks, clear procedures, and well-established institutions, would facilitate negotiation and reflection among various stakeholders, including individuals, organizations, governments, and society as a whole.

Discussions about the role of the Communist Party within the rule of law buildup in China began to resonate more in the 2000s. Chen (2001, p. 33) argues that a well-defined relationship between the Party and the government is essential for establishing a responsible government. He cites Zhang Guoqin's concern that the Party's dominant position in the political system could lead to it being above the law. Zhang argues that relying on Party discipline instead of national law to enforce accountability undermines the government's legal responsibility (quoted in Chen 2001, p. 33). To address this, Chen suggests establishing a system of administrative responsibility in China.

In his article *Reflection on the Construction of Internal Regulations of Communist Party of China*, Zhou Yezhong observes that concepts like governing by law,

exercising state power legally, and intra-party democracy are being progressively institutionalized and implemented. Consequently, he argues that internal Party regulations will take on an even more critical role. Zhou emphasizes the importance of organically linking the development of internal Party regulations with the Party's ability to govern effectively. He argues for incorporating constitutional principles and elements of a modern rule of law into constructing these regulations to firmly establish the rule of law within the Party. By achieving this, Zhou believes the CCP will transform into a more democratic and modern ruling party that adheres to the rule of law (Zhou 2011, p. 47). Jiang (2012) proposes a five-part framework for the socialist rule of law, encompassing governing the country according to law, law enforcement, ensuring fairness and justice, serving the overall situation, and maintaining the Party leadership. Jiang argues that these elements work together to balance Party leadership, citizen participation, and governance based on law (Jiang 2012, p. 80).

During this period, discussions about China's specific conditions and calls for considering local specifics gained prominence under the term Chinese characteristics. This phrase is ubiquitous in Chinese discourse, implying a unique approach without a precise definition. It often signals that established concepts—like democracy, human rights, or the rule of law—carry distinct meanings within the Chinese context. However, this interpretation remains a point of contention. The discussion extends beyond simply seeking inspiration from China's rich history, cultural traditions or ideas from various traditional philosophical schools. It also acknowledges the distinct experiences of the rural and urban populations, recognizing that until the 2010s, China was predominantly rural, with the rural population traditionally viewed as playing a crucial role in the revolution that led to the establishment of the People's Republic of China (PRC). In the case of the rule of law, the Chinese characteristics imply the core leadership of the Communist Party. The Chinese characteristics, however, are not solely inward-looking. The political leadership in China uses them as a protective barrier against unwelcome foreign influences or incompatible ideas perceived as threats to China's one-party system.

Several scholars have explored the concept of the rule of law in the context of China. Ma (2001, pp. 40–41) acknowledges the influence of cultural traditions and history but argues that the core factor lies in the state's and society's dynamic. Consequently, he suggests de-emphasizing "local resources" in discussions about the rule of law in China. Similarly, Shi and Zhang (2003, p. 19) argue that the Western model of the rule of law, linked to multi-party systems and separation of powers, is fundamentally incompatible with China's socialist system. They believe China should prioritize the leadership of the Communist Party, which they see as the critical distinction between socialist and capitalist rule of law. For them, governing by law strengthens the Party's role in guiding the nation. On the same note, Zhang (2009, p. 11) argues against unquestioningly adopting Western models, emphasizing the Communist Party's role in upholding people's democracy and implementing the rule of law. He believes the Party's leadership is inseparable from the fundamental principles of China's socialist rule of law. Zhang outlines the historical development of this unique system, shaped by struggles against "feudalism," "ultra-leftism," and "Westernization." He defines its key characteristics as (1) upholding

Party leadership while prioritizing people's democracy and legal governance, (2) integrating law-based governance with the lawful exercise of state power, (3) balancing law and virtue-based governance, (4) building a society under the rule of law that aligns with China's specific context, and (5) preserving Chinese legal traditions while learning from global legal advancements (Zhang 2009, pp. 13–14).

Guo and Wang (2004, p. 71) highlight the tension between China's modernizing legal system and its traditional customs, particularly in rural areas. While the law's influence grows, people often rely on traditional social controls, sometimes bypassing or adapting legal procedures. The authors advocate for a legal framework that acknowledges China's unique context and respects the public's existing behavioural patterns. They believe effective law implementation requires alignment with cultural values, fostering a robust rule of law with strong local connections (Guo and Wang 2004, p. 76). Similarly, Fu and Chang (2009, p. 33) advocate for a balanced approach to international human rights conventions. While acknowledging their importance, they stress the need to adapt these principles to China's context and prioritize the needs of its large rural population. They argue that the most crucial human rights issue in China centres on the well-being of farmers.

5.3 Xi's Pursuit of the Rule of Law? (2013–2022)

Under the Xi Jinping administration, discussions about the rule of law began to evolve significantly, particularly concerning the role of the Communist Party. During this period, more than half of the examined texts addressed the critical and sensitive topic of the relationship between the Communist Party, the state, and the law. Considerable attention was given to intra-party regulations, deemed essential for fulfilling Xi's vision of building a rule of law with Chinese characteristics before the centenary of the country's founding. The institutionalization, rationalization, and legalization of the party-state system are features of what Baogang Guo refers to as the "Partocracy with Chinese Characteristics" (Guo 2020).

Scholars examine the dynamics between the Party and the government in China, focusing primarily on the tension between national law and Party regulations. While acknowledging the Party's leadership role, these scholars offer diverse perspectives on the legal hierarchy and how the Party-state relationship shapes China's efforts to establish the rule of law. Recent publications increasingly recognize the *de facto* position of the Party above the law, which can create internal contradictions within a single text. For instance, a paragraph might assert that no one is above the Constitution yet simultaneously position the Party Central Committee as superior to the constitutional system. While accepting the Party's central role in the rule of law development, the authors advocate for improvements, such as the clarification and codification of intra-party regulations, to serve as a positive example for the rest of Chinese society.

Wang (2013) argues that since China's reform and opening up, the country has pursued the institutionalization and standardization of two key areas: the construction of the rule of law and the standardization and institutionalization of the Party, including the development of a framework of intra-party regulations (Wang 2013,

p. 146). Wang emphasizes that both sets of rules are equally essential for China's long-term stability and prosperity. He views national law and Party policy as mutually reinforcing, describing them as two sides of the same coin. According to Wang, Party policy provides the guiding principles (the soul) for the law, while the law translates and legitimizes these policies (embodiment and legalization). In this view, governing by law becomes synonymous with governing by Party policy. Law is seen as the primary and essential tool for implementing the Party's policies and ensuring their successful execution.

According to Chen (2013, p. 92), the rule of law's dependence on political power is its greatest enemy. He contends that a political ideology focused solely on preserving power has a detrimental effect on building a proper rule of law (Ibid., p. 96). Chen acknowledges the need for the rule of law to adapt to China's specific national conditions and reflect the people's will. However, he emphasizes that this should not be used as an excuse to stall progress towards a stronger rule of law (Ibid., pp. 92–93). Li argues that the CCP operates within the legal framework established by the Constitution and laws. He posits that the Party demonstrates leadership by following the law, promoting impartiality in its actions, and serving as a role model for legal adherence (Li 2014, p. 12). Expanding on this concept, Tian maintains that Party members hold a special status as "advanced citizens." This distinction comes with specific responsibilities, including actively advocating for the development of the legal system, piloting new legal frameworks, and ultimately serving the people (Tian 2015, p. 91).

The rule of law is a cornerstone of effective governance, according to Chu and Jia (2014). They emphasize that all governance activities and actors must operate within the bounds of the law. The rule of law stands in contrast to the rule of man, as it regulates not only the behaviour of citizens but also the government itself (Chu and Jia 2014, p. 9). Building on this concept, Jiang and Li (2014) argue that fostering legal thinking requires establishing the authority of the rule of law. They emphasize that this necessitates that leaders and public officials at all levels firmly embrace the supremacy of the Constitution and the power of the law. To achieve this, they advocate for three pillars: upholding the law without compromise to maintain stability, resisting unlawful pressure from individuals, and prioritizing universal justice for all, as guaranteed by the rule of law (Jiang and Li 2014, p. 30).

Zhang Wenxian, a prominent Chinese legal scholar and jurist whose articles appeared eleven times in the examined corpus, emphasizes a core principle of China's approach to the rule of law in his article published just before the 18th Central Committee meeting: the leadership of the Communist Party as the foundation for both democracy and legal order. According to Zhang, the implementation of the rule of law is an inherent requirement for the modernization of state governance (Zhang 2014, p. 6). He argues that a strong Party is essential to guarantee the rule of law. However, effective implementation is just as important as legislative improvements. (Ibid., p. 26). In another article, Zhang acknowledges the value of some Western ideas, including Marxism's global influence. He argues that while values may be universal, the political systems that embody them cannot be (Zhang 2015, p. 22). He also references Xi Jinping's call for promoting the rule of law in international relations (ibid., p. 23). Zhang details Xi Jinping's thoughts on the rule

of law, highlighting Xi's emphasis on studying China's legal history while remaining open to learning from other systems. However, he echoes Xi's cautions against "total Westernization" and emphasizes China's unique approach. Zhang (2016, p. 13) advocates for China to shape the international rule of law and contribute to a global order that aligns with its national goals.

The importance of both good law and good governance in building a China under the rule of law is emphasized by Wang (2015, p. 120). He defines good laws as those that reflect the will and interests of the majority, uphold fairness and justice, protect fundamental individual rights, and align with the natural course of social development (Ibid., p. 115). Wang argues that lawmaking should prioritize the people's needs, reflecting both the objective laws of societal progress and the collective sentiment of the nation. Qiang proposes a "party-based rule of law" concept tailored to China's context, distinct from Western interpretations (Qiang 2015, p. 18). He argues that building this system hinges on defining the relationship between the Party Constitution and the national Constitution, Party regulations and national laws, and policies and laws. Qiang acknowledges the National People's Congress (NPC) as the highest legislative body. However, he asserts that the NPC lacks the authority to alter major policies established by the Party Central Committee through legislation or legal amendments (Ibid., p. 21). According to Qiang, this implies that the Party Central Committee holds a higher position within the constitutional system than the NPC. Wang argues that the core principle of "the Party must uphold the rule of law" is essential. He emphasizes that everyone, even the Party, the central nervous system of the political structure, must be subject to the law. He further argues that the success of China's rule of law depends on the leading party's adherence to it (Wang 2016, p. 22). Therefore, Wang calls for strengthening the legal framework surrounding the Party's governance. This includes embedding the rule of law into internal regulations and ensuring open, transparent, and stable party rules that limit discretionary power (Ibid., p. 25). He also warns against unwritten rules within the Party, which clash with the spirit of modern rule of law. Wang argues that clear, transparent regulations are essential for individuals to foresee consequences and act accordingly. This principle, he argues, must apply equally to internal party regulations (Ibid., pp. 25–26).

The complex relationship between the Party regulations and state law is further discussed by Jiang (2017). According to him, any provisions made by the Party's internal regulations cannot contradict the Constitution and laws (Jiang 2017, p. 75). However, he argues that specific Party rules have a broader application because the CCP is not just an ordinary political party. As the leading party in national affairs, it uses party rules to regulate internal affairs and sometimes to adjust national affairs (Ibid., p. 76). Jiang maintains that to establish the rule of law in China, the Communist Party must prioritize its transformation into a party governed by the rule of law. He asserts that without the leading party's adherence to the rule of law, a nationwide system of legal governance is impossible (Ibid., p. 78). To facilitate this transformation, Jiang proposes urgent improvements to the CCP's internal regulatory system, focusing on four key areas: (1) Inner-party democratic system (e.g., decision-making democracy, selection and appointment of officials, and electoral democracy); (2) Party affairs disclosure system; (3) Declaration, verification, and disclosure system

for leading cadres' family property and other personal matters; and (4) Inner-party supervision system (Ibid., p. 78). Wang Jianqin adds criticism about the ambiguity between Party regulations and state law. He argues that Party affairs can be categorized into internal and external affairs, with the latter primarily affecting national and social issues like politics, economics, and social development. Wang notes that 14% of the Party's internal regulations concern external affairs, often issued jointly with state organs. This practice of joint publications, according to Wang, creates two problems: first, the nature and status of such documents are unclear, and second, there is an overlap of authority between party regulations and state laws, blurring their boundaries and exacerbating confusion within the legal system (Wang 2017, p. 38).

Advocacy for the supremacy of state law as the fundamental principle guiding the relationship between Party regulations and national law can be found in a piece by Ji and Zhi (2018). According to them, while Party regulations can be stricter, they must never overstep the "red line" of state law's supremacy (Ji and Zhi 2018, p. 36).

5.4 Great Expectations—Uncertain Outcomes

As illustrated, Chinese scholars have long debated the necessary reforms to establish a stronger rule of law in China. Many proposals from the early 2000s materialized in the 2014 policy announcement by the Chinese Communist Party Central Committee. However, suggestions advocating the absolute supremacy of law, including over the CCP, faced resistance. The concept of judicial independence was often dismissed as a Western attempt to destabilize the Chinese system despite its enshrinement in the Constitution (NPC 2024, Art. 131). In 2017, the president of the Supreme People's Court even urged judges and courts to strictly adhere to CCP ideology and Party leadership (Zhongguo xinwen wang 2017).

The position of the Party as a fundamental guarantee of the Socialist rule of law with Chinese characteristics was solidified in a manner of the Four cardinal principles⁵ (CC CCP 2021). Nevertheless, the Chinese leadership realized that intra-party reforms are necessary to align with the realities of the twenty-first century and address the Party's tarnished image resulting from widespread corruption and nepotism scandals. In his address following the 19th National Congress of the CCP, Xi Jinping emphasized the critical importance of establishing a comprehensive rule of law in China. The goal is to create a system where the Constitution is upheld, legislation is grounded in scientific principles and fairness, and everyone is equally subject to the same laws. Simultaneously, Party organizations and members must set an example by respecting, learning, and adhering to the law without any privileges beyond what the Constitution and laws allow (Renminwang 2017). However, similar policy pronouncements do not necessarily translate into actual implementation.

⁵ Introduced by Deng Xiaoping in 1979, these principles represent the core ideological tenets of the CCP and are not open to public debate within China. They are: upholding the socialist path, people's democratic dictatorship, leadership of the Chinese Communist Party, and Marxism-Leninism and Mao Zedong Thought.

Instead, they often obfuscate the reality of the CCP maintaining control over all aspects of Chinese society. While promises are easily made and can serve as a convenient window-dressing strategy, the true extent of the Party's influence remains unchanged.

6 Conclusion

China has undergone a dramatic transformation since Mao Zedong's era. No longer a lawless and underdeveloped nation, China now boasts a modernized economy and a powerful military presence. However, economic liberalization and globalization did not, as many expected, usher in a liberal democracy. Instead, it emerged as the world's most populous authoritarian superpower, with the second-largest economy and the third-strongest military (International Monetary Fund 2024; Global Firepower 2024). China's ambitions extend beyond its borders, evolving from a passive recipient of policies and norms to a regional and potentially global norm-setter. The so-called Chinese model of economic development without political liberalization holds greater appeal for many developing countries in Asia and Africa than the Western model. These ambitions are clearly stated in China's 2021 Five-Year Plan on Building the Rule of Law in China. The plan's scope extends beyond China's territory, aiming to exert influence abroad by actively formulating international rules and promoting the Chinese version of the rule of law. These ambitions are endorsed by prominent legal scholars, such as Zhang Wenxian, who argues that China should actively participate in and strive to lead international legislation, support global law enforcement, international justice, and international arbitration, participate in international legal services, and actively carry out legal diplomacy (Zhang 2017, p. 17). But what does the Chinese version of the rule of law entail? Additionally, should we consider the Socialist Rule of Law with Chinese Characteristics a distinct concept from the democratic liberal rule of law?

Discussions about the rule of law among Chinese scholars were particularly lively during the second decade of the twenty-first century, leading to official policy announcements. The authors emphasized necessary reforms that reflected essential characteristics of the rule of law, including the supremacy of law, equality before the law, due process, and accountability. The discussions also covered the position of the Communist Party within and beyond the Chinese legal system and the separation of powers. Despite academic discourse outlining various potential paths for China's future, the Communist Party's focus on self-preservation has hindered the realization of the most ambitious proposals. The Party fiercely guards its absolute authority and shows no interest in checks and balances that could limit its power. This stance is reminiscent of the biblical narrative of God delivering the Ten Commandments to Moses on Mount Sinai. However, in China's case, the Communist Party appears to be simultaneously bestowing the rule of law upon the people while insulating itself from its constraints.

We can view the rule of law as an ideal, measuring a country's progress or regression on a spectrum of implementation. Peerenboom (2002, p. 21) described the Chinese legal system as transitioning towards a thin rule of law. However, since

Xi Jinping became the country's leader, there has been a shift towards a different goal: the Socialist rule of law with Chinese characteristics. While China appears to be moving towards the rule of law, this separate track might ultimately lead it further away. Under Xi Jinping, the rule of law is not conceived as a rule of rules (Peerenboom 2024, p. 72).

China employs established legal terms like the rule of law to make itself more understandable to the international community, leveraging the common language of global discourse. However, this willingness to adopt familiar terminology does not necessarily translate to strict adherence to their original definitions. China often seeks to reshape or even dilute these concepts to align with its domestic context, a phenomenon it terms “national characteristics.” While global powers often seek to redefine concepts to suit their interests, such practices can pose significant dangers, especially in the hands of undemocratic and authoritarian regimes. China's reinterpretation of established legal terms is unlikely to lead to a freer and more equitable society and will certainly not enhance the rule of law.

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References

- Ali Nasser Y, Wong Foreman M (2023). The Chinese archive: a pocket manual. council of library and information resources, Alexandria
- Bedner A (2018) The promise of a thick view. In: May C, Winchester A (eds) Handbook on the rule of law. Edward Elgar, Cheltenham, pp 34–47
- Brødsgaard KE, Rutten K (2017) From accelerated accumulation to socialist market economy in China: economic discourse and development from 1953 to the present. Brill, Leiden. <https://doi.org/10.1163/j.ctt1w8h2tj.11>
- Cao D (2016) Chinese Law: A Language Perspective. Routledge, New York
- Carter J (2020) China's archives are being erased. Much is at risk of being lost. The China Project. <https://thechinaproject.com/2020/11/18/chinas-archives-are-being-erased-much-is-at-risk-of-being-lost/>. Accessed 20 Apr 2024
- Central Committee of the Chinese Communist Party (CC CCP) (2014) The CCP Central Committee Decision concerning Several Major Issues in Comprehensively Advancing Governance According

- to Law 中共中央关于全面推进依法治国若干重大问题的决定. https://www.gov.cn/zhengce/2014-10/28/content_2771946.htm. Accessed 20 Apr 2024
- Central Committee of the Chinese Communist Party (CC CCP) (2021) The CCP Central Committee Issued the Plan for the Construction of a Rule of Law China (2020–2025) 中共中央印发《法治中国建设规划（2020–2025年）》. https://www.gov.cn/zhengce/2021-01/10/content_5578659.htm. Accessed 20 Apr 2024
- Central Political and Legal Affairs Commission (CPLC) (2009) A guide to understanding socialist rule of law 社会主义法治理念读本. China Chang'an Publishing House. http://iolaw.cssn.cn/xx/201908/t20190808_4953752.shtml. Accessed 24 Sept 2024
- Chen G (2001) On responsible government and the role of supervision in its realizing process 论责任政府及其实现过程中的监督作用. *J Zhejiang Univ (Humanities and Social Sciences Edition)* 31:28–34
- Chen R (2002) Theoretical reflections on the pending detention system 未决羁押制度的理论反思. *CASS J Law* 5:60–83
- Chen J (2003) Legal thinking and its significance to the rule of law 法律思维及其对法治的意义. *Stud Law Bus* 6:62–70
- Chen J (2013) Interpretation of “legal thinking and legal approach” 对“法治思维和法治方式”的诠释. *J Natl Prosec Coll* 21:77–96
- Chen GG (2017) *Le Droit, C'est Moi: Xi Jinping's new rule-by-law approach*. Oxford Human Rights Hub. <https://ohrh.law.ox.ac.uk/le-droit-cest-moi-xi-jinpings-new-rule-by-law-approach/>. Accessed 30 Apr 2024
- Chu H, Jia J (2014) Educational governance and educational good governance 教育治理与教育善治. *J Chin Soc Educ* 12:6–10
- Clarke D (2020) Order and Law in China. Clarke, Donald C., Order and Law in China (25 August 2020). GWU Legal Studies Research Paper No. 2020-52, GWU Law School Public Law Research Paper No. 2020-52:1–55. <https://ssrn.com/abstract=3682794>.
- Ding X, Xia S (2006) Some thoughts on improving my country's administrative accountability system 完善我国行政问责制的几点思考. *Chin Public Adm* 3:15–17
- Fu Z, Chang A (2009) On the human welfare law 民生法治论. *China Legal Sci* 6:26–40
- Ginsburg T, Simpser A (2013) Introduction: constitutions in authoritarian regimes. In: Ginsburg T, Simpser A (eds) *Constitutions in authoritarian regimes*. Cambridge University Press, Cambridge, pp 1–18
- Global Firepower (2024) 2024 military strength ranking. <https://www.globalfirepower.com/countries-listing.php>. Accessed 20 Apr 2024
- Gong P (1998) The process and prospects of modernising China's legal system 中国法制现代化的进程与前景. *J Nanjing Normal Univ (Social Science Edition)* 4:3–8
- Gorobets K (2020) The international rule of law and the idea of normative authority. *Hague J Rule Law* 12:227–249. <https://doi.org/10.1007/s40803-020-00141-3>
- Gu MD (2013) Sinologism: an alternative to orientalism and postcolonialism. Routledge, London
- Guo B (2020) A partocracy with Chinese characteristics: governance system reform under Xi Jinping. *J Contemp China* 29(126):809–823. <https://doi.org/10.1080/10670564.2020.1744374>
- Guo X, Wang P (2004) The disputes in Chinese rural areas and dispute resolution forms—an empirical study on both law awareness and legal activities in Chinese rural areas 中国农村的纠纷与解决途径——关于中国农村法律意识与法律行为的实证研究. *Jiangsu Soc Sci* 2:71–77
- He X (2020) (Non)legality as Governmentality in China. University of Hong Kong Faculty of Law Research Paper No. 2020/035. <https://doi.org/10.2139/ssrn.3612483>.
- International Monetary Fund (2024) GDP, current prices. <https://www.imf.org/external/datamapper/NGDPD@WEO/OEMDC/ADVEC/WEOWORLD>. Accessed 20 Apr 2024
- Ji Y, Zhi H (2018) On the relationship between the party regulations and the state law 论党内法规与国家法律的协调和衔接. *Hebei Law Sci* 1:30–40
- Jiang X (1997) Cultural and ethical foundations of the rule of law and its construction 法治的文化伦理基础及其构建. *Law Sci (Journal of Northwest Institute of Political Science and Law)* 6:3–9
- Jiang M (2012) Re-discussing the rule of law, legal thinking and legal means 再论法治、法治思维与法律手段. *Soc Sci Hunan* 4:75–82
- Jiang M (2017) On the role of the inner-party regulations in the rule of law 论党内法规在依法治国中的作用. *J Party School Central Comm CCP* 21:73–81
- Jiang B, Li M (2014) On innovation in social governance 论社会治理创新. *J Xinjiang Normal Univ (Philosophy and Social Sciences Edition)* 2:25–34

- Kellogg TE (2018) Rule of law in Asia: the case of China. In: May C, Winchester A (eds) *Handbook on the rule of law*. Edward Elgar, Cheltenham, pp 490–508
- Lavička M, Chen YW (2023) New measures for governing religions in Xi's China. *China Rep* 59:259–274. <https://doi.org/10.1177/00094455231187046>
- Li L (2014) Ruling the country according to law and promoting the modernization of state governance 依法治国与推进国家治理现代化. *CASS J Law* 5:3–17
- Li S (2022) The rise of china Inc: how the chinese communist party transformed china into a giant corporation. Cambridge University Press, Cambridge
- Liu P (2013) The Crux and Solution of Religious Issues in China. Pu Shi Institute for Social Sciences, 28 June. <http://www.pacilution.org/english/ShowArticle8d5d.html?ArticleID=3173>. Accessed 24 Sept 2024
- Lu F, Yao Y (2004) Legality, financial development and economic growth under financial repression 金融压抑下的法治、金融发展和经济增长. *Soc Sci China* 1:42–55
- Ma Z (1999) The quality of the rule of law in ancient China—a rebuttal of the indigenous resources of the rule of law 中国古代“法治”质论—兼驳法治的本土资源说. *Law Rev* 1(93):47–55
- Ma C (2001) Civil society and political state: the foundation and limits of the rule of law 市民社会与政治国家: 法治的基础和界限. *CASS J Law* 3:19–41
- May C, Winchester A (2018) Introduction to the handbook on the rule of law. In: May C, Winchester A (eds) *Handbook on the rule of law*. Edward Elgar, Cheltenham, pp 1–17
- Møller J (2018) The advantages of a thin view. In: May C, Winchester A (eds) *Handbook on the rule of law*. Edward Elgar, Cheltenham, pp 21–33
- Møller J, Skaaning SE (2014) The rule of law: definitions, measures, patterns and causes. Palgrave Macmillan, New York
- National People's Congress of the People's Republic of China (NPC) (2024) Constitution of the People's Republic of China. http://www.npc.gov.cn/zgrdw/englishnpc/Constitution/node_2825.htm. Accessed 20 Apr 2024
- Ortmann S, Thompson MR (2014) China's obsession with Singapore: learning authoritarian modernity. *Pac Rev* 27:433–455. <https://doi.org/10.1080/09512748.2014.909522>
- Ortmann S, Thompson MR (2016) China and the “Singapore Model.” *J Democr* 27:39–48
- Peerenboom R (2002) China's long march toward rule of law. Cambridge University Press, Cambridge
- Peerenboom R (2004) Varieties of rule of law: an introduction and provisional conclusion. In: Peerenboom R (ed) *Asian discourses of rule of law: theories and implementation of rule of law in twelve asian countries, France and the U.S.* Routledge Curzon, New York, pp 1–55
- Peerenboom R (2014) The battle over legal reforms in China: has there been a turn against law? SSRN. <https://doi.org/10.2139/ssrn.2479716>. Accessed 23 Sept 2024
- Peerenboom R (2024) The Transformation of State Socialist Rule of Law into Party-State Socialist Rule of Law in the Xi Jinping era of comprehensive rules-based governance. SSRN. <https://ssrn.com/abstract=4736955>. Accessed 25 Sept 2024
- Qiang S (2015) The party constitution and the constitution: the construction of a pluralistic and integral republic under the rule of law 党章与宪法: 多元一体法治共和国的建构. *Beijing Cult Rev* 4:18–29
- Rajah J (2012) Authoritarian rule of law? Legislation, discourse and legitimacy in Singapore. Cambridge University Press, Cambridge. <https://doi.org/10.1017/CBO9780511998201>
- Raz J (1979) The authority of law: essays on law and morality. Oxford University Press, Oxford. <https://doi.org/10.1093/acprof:oso/9780198253457.001.0001>
- Renminwang (2017) Xi Jinping's report at the 19th National Congress of the Communist Party of China 习近平在中国共产党第十九次全国代表大会上的报告. <http://cpc.people.com.cn/n1/2017/1028/c64094-29613660.html>. Accessed 20 Apr 2024
- Rijkema P (2013) The rule of law beyond thick and thin. *Law Philos* 32:793–816. <https://doi.org/10.1007/s10982-012-9170-1>
- Ruskola T (2013) Legal orientalism: China, the United States, and modern law. Harvard University Press, Harvard
- Seppänen S (2016) Ideological conflict and the rule of law in contemporary China: useful paradoxes. Cambridge University Press, Cambridge. <https://doi.org/10.1017/CBO9781316534120>
- Shi T, Zhang H (2003) On the exercise of state power by the communist party of China in accordance with the law 论中国共产党依法执政. *Soc Sci China* 1:13–24+204–205
- Smith E (2019) The rule of law in party documents. *China Law Soc Rev* 4:41–69. <https://doi.org/10.1163/25427466-00401002>

- Sun X (1999) On formal justice and substantive justice 法的形式正义与实质正义. *J Zhejiang Univ (Humanities and Social Sciences)* 29(5):5–12
- Tamanaha BZ (2004) *On the rule of law: history, politics, theory*. Cambridge University Press, Cambridge. <https://doi.org/10.1017/CBO9780511812378>
- The Economist (2023) It is getting even harder for western scholars to do research in China. <https://www.economist.com/china/2023/04/05/it-is-getting-even-harder-for-western-scholars-to-do-research-in-china>. Accessed 20 Apr 2024
- Tian F (2015) The legal system of political party in the process of state governance of law 法治国家进程中的政党法制. *Legal Forum* 3:91–106
- United Nations (UN) (2024) United nations and the rule of law. <https://www.un.org/ruleoflaw/>. Accessed 20 Apr 2024
- Vukovich DF (2012) *China and orientalism: Western knowledge production and the P.R.C.* Routledge, New York
- Wang Z (2013) Basic theoretical issues concerning the CCP regulations and rules 党内法规制度体系建设的理论问题. *Soc Sci Chin Higher Educ Inst* 5:136–153+159
- Wang L (2015) Rule of law: good law and good governance 法治: 良法与善治. *J Renmin Univ China* 2:114–121
- Wang R (2016) Relationship between rule-based party governance and law-based state governance in China 依规治党与依法治国的关系. *CASS J Law* 6:17–28
- Wang J (2017) The construction of the intra-party legal system from the perspective of the rule of law 法治视野下的党内法规体系建设. *J Zhejiang Party School CCP* 3:34–40
- Wang X, Chen Y (2003) On the right to know 论知情权. *Law Soc Dev* 50:62–74
- Wang J, Li B, Liu H, Liu H, Liang H, Xiao X (1996) On governing the country according to law 论依法治国. *CASS J Law* 2:3–9
- World Justice Project (WJP) (2023) Rule of Law Index. <https://worldjusticeproject.org/rule-of-law-index/>. Accessed 20 Apr 2024
- Xinhua (2020) Laying a solid foundation for a great cause for a long time to come—Xi Jinping's rule of law thought leads the new era of comprehensive governance of the country according to the record 为千秋伟业夯基固本——习近平法治思想引领新时代全面依法治国纪实. Xinhua. http://www.xinhuanet.com/politics/leaders/2020-11/18/c_1126756747.htm. Accessed 20 Apr 2024
- Yan C (1999) Rule of law society and substantive justice 法治社会与实质正义. *Shandong Law Sci* 2:11–14
- Yao J (1997) Faith: the spiritual dimension of the rule of law 信仰:法治的精神意蕴. *Jilin Univ J Soc Sci Ed* 2:1–12
- Ye R (2021) Shifting meanings of Fazhi and China's journey toward socialist rule of law. *Int J Const Law* 19:1859–1881. <https://doi.org/10.1093/icon/moab077>
- Yin Z (1998) Separation of powers and modern rule of law: historical reflection and practical revelation of Montesquieu's doctrine of separation of powers 分权制衡与现代法治——孟德斯鸠三权分立学说的历史反思与现实启示. *Law Sci (Journal of Northwest Institute of Political Science and Law)* 4:21–29
- Ying S (1997) Outline of administrative law 依法行政论纲. *China Law J* 1:29–43
- Yu J (2008) The tension between governance and state-building 治理与国家建构的张力. *Marx Real* 1:86–93
- Zhang W (2009) On the road to chinese characteristic socialist rule of law 论中国特色社会主义法治道路. *China Legal Sci* 6:5–14
- Zhang W (2014) The rule of law and modernization of national governance 法治与国家治理现代化. *China Legal Sci* 4:5–27
- Zhang W (2015) The cultural connotation of rule of law: the cultural construction of China's rule of law 法治的文化内涵——法治中国的文化建构. *Jilin Univ J (Social Sciences Edition)* 4:5–24+248
- Zhang W (2016) Research on Xi Jinping's thought on the rule of law (part 1)—the distinctive characteristics of Xi Jinping's thought on the rule of law 习近平法治思想研究(上)——习近平法治思想的鲜明特征. *Law Soc Dev* 2:5–21
- Zhang W (2017) Ideas, strategies and practices of governing china by law in a new era 新时代全面依法治国的思想、方略和实践. *China Legal Sci* 6:5–28
- Zhang T, Ginsburg TB (2019) China's turn toward law. *Va J Int Law* 59:306–389

- Zheng C, Zhang Y (2005) On public credibility of the judiciary 论司法公信力. *J Shanghai Jiaotong Univ (Philosophy and Social Sciences Edition)* 13:5–10
- Zhongguo xinwen wang (2017) Zhou Qiang: we must dare to show our sword to the wrong thinking in the West 周强: 要敢于向西方错误思潮亮剑. <https://www.chinanews.com/gn/2017/01-14/8124300.shtml>. Accessed 30 Apr 2024
- Zhou Y (2006) The wave of petitions and the path selection of China's dispute resolution mechanism 信访潮与中国纠纷解决机制的路径选择. *J Jinan Univ (Philosophy and Social Sciences Edition)* 1:37–47+149
- Zhou Y (2007) On the governance of the administrative discretion 行政裁量的治理. *CASS J Law* 2:121–132
- Zhou Y (2011) Reflection on the construction of internal regulations of communist party of China 关于中国共产党党内法规建设的思考. *Legal Forum* 4:41–47
- Zhu Z (2020) Understanding Xi Jinping thought on the rule of law. *CGTN*. <https://news.cgtn.com/news/2020-11-19/Understanding-Xi-Jinping-thought-on-the-rule-of-law-VxugROqvV6/index.html>. Accessed 20 Apr 2024

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